

## 25STCV08536 25STCV08536

County: los-angeles

Division: Civil Law and Motion

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### MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter August Metoyer v. FCA US, LLC, et al., Los Angeles County Superior Court case number 25STCV08536, set for hearing on July 21, 2026. August Metoyer (Plaintiff) moves for an order compelling FCA US, LLC (Defendant) to comply with Code of Civil Procedure section 871.26 by producing certain documents. Plaintiff also seeks the imposition of sanctions pursuant to that section. Defendant opposes the motion. The motion is denied. The Court does not award sanctions.

A.

Legal Standard

In civil

actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the “parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., § 871.26, subd. (b).) Plaintiffs must provide certain documents and information pursuant to subdivisions (f) and (g), and defendants must provide the documents outlined in subdivision (h). Sanctions of \$1,500 and \$2,500 are required against a plaintiff or defendant, respectively, that fails to comply with section 871.26, subdivision (b), absent a showing of good cause. (Id. § 871.26, subd. (j)(1).)

B. Discussion

Plaintiffs move for an order

compelling Defendant to produce all discovery materials required as initial disclosures under Code of Civil Procedure section 871.26. Specifically, Plaintiffs argue that Defendant has not provided verified responses and has not produced all materials listed within section 871.26, subdivision (h), subparagraphs 6–10, 12, and 13. Plaintiffs also seek sanctions for Defendant's failure to produce these materials.

As a threshold matter, Defendant

argues that section 871.26 no longer applies to the present case. Section 871.26 “only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., § 871.26, subd. (a).) Section 871.20 defines its scope with greater specificity, stating that it applies to “an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (Id., § 871.20, subd. (a).)

Neither party cites any authority

on whether section 871.26 still applies to an action in which Song-Beverly Act claims were initially brought but later excised by demurrer. The Court has also failed to locate any guidance from the Court of Appeal, most likely because the statute was recently enacted. Thus, the Court must base its decision on the text of the statute alone. To that end, section 871.26 only applies to an action specifically seeking “restitution or replacement of a motor vehicle” pursuant to specific Civil Code sections, namely 1793.2, 1793.22, and 1794. (Id., § 871.20, subd. (a).) For these specific procedures to apply, the action must include a claim under one of those provisions and seek the proper relief. This conclusion is supported by the fact that certain required disclosures reference claims under the Song Beverly Act specifically — it would be illogical to still require discovery related to such matters once the claims are eliminated from the case. (See id., § 871.26, subd. (i)(11).)

Here, the Court sustained

Defendant's demurrer to Plaintiff's first five causes of action on February 13, 2026. Plaintiff never amended the complaint after the demurrer was sustained. Plaintiff's

first amended complaint (FAC) now only contains a single cause of action for fraudulent inducement via concealment. This claim sounds in common law fraud and contains no reference to the relevant Civil Code provisions. Thus, the present action does not seek restitution or replacement of a motor vehicle pursuant to Civil Code sections 1793.2, 1793.22, or 1794, and thus section 871.26 does not apply. Accordingly, Plaintiff's motion is denied.

#### C. Conclusion

The Court denies Plaintiff's motion. The Court does not award sanctions.